

Court No. - 21

Case :- WRIT - C No. - 19648 of 2024

Petitioner :- Praveen Kumar @ Praveen Chauhan

Respondent :- State Of U.P. And 3 Others

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. None is present for the petitioners even in the revised call.
2. Shri Pranjal Mehrotra, Advocate is present for the respondent - corporation.
3. Counsel for the respondent submits that petitioner has challenged the notice of provisional assessment dated 30.6.2023 and therefore, the challenge is premature.
4. We have perused the impugned notice dated 30.6.2023 and we find considerable force in the submission of learned counsel for the respondent - Electricity Department. The impugned notice is merely a notice of provisional assessment. As per the admitted case of the petitioner, his objection dated 30.9.2023 against the same are still pending.
5. Shri Pranjal Mehrotra, Advocate states that while passing the order of final assessment, objections filed by the petitioner dated 30.9.2023 would be duly considered. He further states that till the final assessment is made, no coercive action on the basis of impugned provisional assessment shall be taken against the petitioner.
6. Having regard to the same, we **dispose of** the instant petition by providing that the concerned Assessment Officer while passing the order of final assessment shall follow the procedure prescribed under the Act and the Electricity Supply Code, 2005 and until order of final assessment is passed, not to adopt any coercive measure against the petitioner.

Order Date :- 1.7.2024

Rishabh

[Manish Kumar Nigam, J.] [Manoj Kumar Gupta, J.]